

Court No. - 39

Case :- WRIT - C No. - 20749 of 2014

Petitioner :- Prem Kishor Trivedi

Respondent :- State Of U.P. Thru Secy. And 3 Others

Counsel for Petitioner :- D.S. Parmar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

We have heard Sri D.S. Parmar, learned counsel for the petitioner, learned Standing Counsel for the respondent Nos. 1 and 4 and Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 and 3, U.P. Power Corporation.

This writ petition is directed against the recovery citation dated 6.1.2014 as also the electricity bill dated 2.2.2014 issued to the petitioner.

According to the learned counsel for the petitioner, his father late Ram Kumar Trivedi (Tripathi) had got the electricity connection permanently disconnected and paid bill on 23.10.2004. Learned counsel for the petitioner states that in spite of disconnection of the electricity, the department has issued a recovery certificate dated 6.1.2014 for a sum of Rs. 5065/- as also a bill dated 2.2.2014 for a sum of Rs.1,19,417/-. Learned counsel disputes the recovery citation as also the bill which have been issued to the petitioner in the name of his deceased father on the ground that when the electricity connection had already been disconnected on 23.10.2004, no bill could have been issued against his late father. He further states that the bill has been issued illegally.

Learned counsel for the Power Corporation has submitted that such a dispute raised by the petitioner can be decided by the competent authority as provided in Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005 and the petitioner should apply before the competent authority under the said provision for redressal of his grievance. He further submits that this writ petition under Article 226 of the Constitution of India involving highly disputed questions of fact cannot be adjudicated only on the basis of exchange of affidavits and, therefore, the petitioner should avail the remedy available under the U.P. Electricity Supply Code, 2005.

We have considered the submission of learned counsel for the parties and find that the petitioner has disputed the recovery citation as also the electricity bill issued to him in the name of his late father. U.P. Electricity Supply Code, 2005 Clause 6.5 provides the remedy for such a grievance of the electricity consumer and, therefore, we are of the opinion that the petitioner should apply before the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 with his grievance. In case he does so within a period of one month from today, the competent authority should decide the grievance of the petitioner in accordance with law within the time stipulated under the said Clause.

It is made clear that we have not expressed any opinion on merits of the claim of the petitioner which is to be done by the competent authority under the said Clause of the U.P. Electricity Supply Code, 2005.

Learned counsel for the U.P. Power Corporation states that in case the petitioner complies with the conditions under this order, the Power Corporation will not take any coercive measure against the petitioner till final decision is taken by the competent authority in accordance with law.

The writ petition is finally disposed of.

No order is passed as to costs.

Order Date :- 10.4.2014

Rmk.